

		The amended motions suffer from the same procedural defects. The Motions are denied.
9	24-01408949 Mehta v. Ford Motor Company	1) Demurrer to Complaint 2) Case Management Conference
10	2023-01324999 Simply Crystal Clean, LLC v. Ital Pizza II, LLC	Motion for Summary Judgment and/or Adjudication Defendants Ital Pizza II, LLC, dba Bottega Angelina, Ital Pizza, Inc., dba Angelina's Pizzeria Napoletana, Spectrum Restaurant Management Group, LLC, Philip Fusco, aka Filippo Fusco, and Shokoufeh Fusco, aka Shokoufeh Amiri (collectively, "Defendants") seek summary adjudication on the three causes of action alleged in the First Amended Complaint ("FAC") filed by Plaintiffs Simply Crystal Clean, LLC and Bitu Safari ("Safari") (collectively, "Plaintiffs"). As an initial matter, Defendants' proof of service for their moving papers and reply did not include the server's email address. (Code Civ. Proc., 1013b, subd. (b)(1).) Plaintiffs served and filed an opposition without objecting to service. Subject to any objections regarding service of Defendants' reply, Defendants' motion for summary adjudication is granted. The Court also notes Defendants' notice of motion seeks summary adjudication on only the third cause of action, but also appears to seek summary adjudication on all three causes of action – the first two causes of action as alleged by Safari and the third cause of action by Plaintiffs. Defendants briefed all three causes of action in the moving papers and Defendants' separate statement repeats the three issues verbatim. Plaintiffs oppose the motion as to all three issues without objecting to service. Accordingly, the Court considers Defendants' motion as to all three issues set forth in the notice of motion and separate statement. Defendants' unopposed request for the Court to take judicial notice of bill analysis is granted. (<i>A.D. Improvements, Inc. v. Department of Transportation</i> (2024) 105 Cal.App.5th 1166; <i>see, St. John's Well Child & Family Center v. Schwarzenegger</i> (2010) 50 Cal.4th 960, 967.)

General legal authority

In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (*Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (*Ibid.*) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (*Clark v. Baxter Healthcare Corp.* (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*,

	<i>supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; <i>see Sheiding v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (<i>Doe v. Salesian Society</i> (2008) 159 Cal.App.4th 474, 481; <i>Bushling v. Fremont Med. Center</i> (2004) 117 Cal.App.4th 493, 510.) The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.” (Code Civ. Proc., § 437c, subd. (b)(1).) The motion and opposition must be accompanied by a separate statement. (Cal. Rules of Ct., Rule 3.1350, subd. (c)(2), (d), (e)(2), (f), and (g); Code Civ. Proc. §437c, subd. (b).) The separate statement must set forth “plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd. (b)(1).) The format of the separate statement must comply with the requirements set forth in California Rules of Court, Rule 3.1350, subd. (d), (f), and (h). <u>Analysis</u> Issue 1: There are not triable issues of material fact that defendants are liable to plaintiff Bitu Safari under the first cause of action for common counts and Issue 2: There are not triable issues of material fact that defendants are liable to plaintiff Bitu Safari under the second cause of action for breach of contract. Defendants seek summary adjudication against Safari on the first two causes of action. Plaintiffs concede Safari is not bringing the first two causes of action against Defendants. As Defendants point out in their
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		reply, based on the allegations of Plaintiffs' FAC, it is unclear whether Safari is bring these two claims. Because Plaintiffs concede Safari is not bringing the first two causes of action against Defendants, the motion for summary adjudication of these two issues is granted. Issue 3: There are not triable issues of material fact that defendants are liable to plaintiff Simply Crystal Clean, LLC or Bita Safari under the third cause of action for extortion Defendants met their burden to show Plaintiffs were not damaged by the alleged threats. (<i>Fuhrman v. California Satellite Systems</i> (1986) 179 Cal.App.3d 408, 426 and 428; <i>Tran v. Nguyen</i> (2023) 97 Cal.App.5th 523, 529 and 535; Defendants' Material Fact Numbers 5-15.) Plaintiffs did not raise a triable issue of material fact as to whether Plaintiffs sustained any damages. Although Plaintiffs contend <i>Mendoza vs. Hamzeh</i> (2013) 15 Cal.App.4th 799 held payment is not required if Plaintiffs suffered emotional distress, Plaintiffs submitted no evidence of emotional distress. (<i>See, Tran v. Nguyen</i>, 97 Cal.App.5th at 535; Opposition, 2:26-27; Plaintiffs' Separate Statement, 7:6-10.) The Court notes <i>Mendoza</i> did not discuss whether payment was required to state a cause of action for civil extortion. Rather, the <i>Mendoza</i> Court denied an anti-SLAPP motion on the ground that the defendant's conduct was criminal extortion as a matter of law and, as such, not protected conduct. (<i>Mendoza v. Hamzeh</i> (2013) 215 Cal.App.4th 799, 807.) The Court also notes Defendants quote <i>Fuhrman v. California Satellite Systems</i> (1986) 179 Cal.App.3d 408, 426-427 for the elements of civil extortion. (Motion, 11:1-6.) However, nowhere does the language Defendants cite appear in <i>Fuhrman</i>. Accordingly, the motion for summary adjudication is granted.
11	2021-01214279 Sun v. Pei	Motion to be Relieved as Counsel of Record The motion of Wesierski & Zurek, LLP, to be relieved as counsel of record for defendant Kang Pei, is granted. Upon the signing of the order, defendant's counsel shall serve the signed order on the client and all parties that have appeared. Wesierski & Zurek, LLP will be relieved as counsel of record for Kang Pei, effective upon the filing of the proof of service of the signed order upon the client and all parties. Wesierski & Zurek, LLP is ordered to give notice of the ruling.